MUTUAL NON-DISCLOSURE AGREEMENT

1. Purpose

The Parties wish to explore a procurement relationship and, for that purpose, disclose certain confidential information including pricing, supplier cost structures, and vendor risk assessments.

2. Definition of Confidential Information

"Confidential Information" means all non-public information disclosed by either Party to the other, whether oral, written, or electronic, that is marked as confidential or that a reasonable person would understand to be confidential.

3. Obligations

Each Party shall (a) use the other's Confidential Information solely for the Purpose; (b) restrict disclosure to representatives with a need to know who are bound by equivalent obligations; and (c) apply no less care than it applies to its own confidential information.

4. Term

This Agreement remains in effect for three (3) years from the Effective Date. Confidentiality obligations survive termination for an additional three (3) years.

5. Governing Law

This Agreement is governed by the laws of the State of New York.